ORDINANCE NO. 454

AN ORDINANCE TO AMEND ORDINANCE 378 PROVIDING FOR THE PROCEDURAL AND DUE PROCESS REQUIREMENTS FOR THE IMPLEMENTATION OF THE REMOVAL OF REAL PROPERTY CONDEMNATION WITHIN THE CITY OF RECTOR, DECLARING AN EMERGENCY AND FOR OTHER PURPOSES.

NOW, THEREFORE, BE IT ORDAINED BY THE CITY COUNCIL OF THE CITY OF RECTOR, ARKANSAS:

SECTION 1: The Code Enforcement Officer of the City shall be responsible for the implementation of the procedural requirements of condemnation proceedings, by the following acts:

(A) The Code Enforcement Officer shall first obtain the legal description and ownership of the property subject to condemnation if possible. All efforts shall be given to this requirement and a record shall be kept describing what Code Enforcement Officer did to ascertain the names.

(B) A letter with the defects to be outlined then shall be mailed to the owner requesting that the structure be removed or repaired. A copy of the proposed Resolution will be mailed to the individual enclosed with a letter.

(C) If in the event of the failure to remove or repair in the first request and additional notice shall be forwarded informing the owner of failure to comply and further that at the next regular city council meeting a resolution will be presented to the council to condemn the property. The notice shall contain penalties for failure to comply.

(D) Prior to the City Council meeting the Code Enforcement Officer shall have the property appraised and inspected by a competent appraiser for determination if the property shall be condemned. Pictures of the structure shall be taken for review by the City Council.

(E) If in the event the appraiser is of the opinion that the property should be condemned a signed affidavit shall be submitted along with pictures to the City Council for

determination if a resolution should be passed condemning the property. The appraiser may use the following criteria, but shall not be limited to the following items for deciding the structure defects constitute a nuisance for deciding the structure a nuisance:

A. Age & marketing value of the structure.

B. Aesthetic value.

C. Outward appearances of the efforts to raze or surrender property.

D. Occupancy of the structure.

E. Insurance value.

F. Fire hazard and danger to surrounding structures--trash in the yard.

G. Structural defects.

H. Unsightliness.

I. Health and Safety.

J. Complaint of any neighbors.

The qualifications of the appraiser shall be he is a person that is familiar with the market value within the City of Rector and is knowledgeable of market condition and aesthetic value. The city may use the opinion of the chief of police, the fire department chief, Code Enforcement Officer or any neighbors or any other person it desires to hear for opinions on the issue of condemnation

(G) If the property is condemned by a resolution a copy shall be forwarded to the owner placing them on notice of the condemnation proceedings. The notice shall be posted on the property as well as published once a week for two weeks in a newspaper of general circulation within the area.

(H) If the defects are not corrected within a period of thirty (30) days and after the city has provided the owner with a copy of Notice of the condemnation proceedings, the city may then implement the condemnation by either civil or criminal procedure.

(I) All notices shall be addressed to the owner or agent certified mail return receipt requested. Regular mail shall be used by the city if the addressees refuse to sign for the certified mail return receipt requested. On the face of the envelope which is sent by regular mail there shall be a quotation " failure to acknowledge receipt of this letter will in no way affect the validity of the city ordinance."

SECTION 2: Definitions. Owner is defined as any person, individual, or corporation that are recognized title holders, which have an interest in property by way of intestate succession, will, deed, mortgage, or deed of trust or adverse possession, of any property located within the city limits of Rector. Any owner shall be subject to the provision of this ordinance.

SECTION 3: This Ordinance being necessary for the health, safety and welfare of the persons of Rector an emergency is declared to exist and this ordinance shall take effect and be in force from and after its passage.

Passed and approved by the City Council of the City of Rector, this 14TH day of September, 1998.

Ronald E. Kemp, Mayor

ATTEST:

Kenneth R. Burns, City Clerk